

complaint

Ms B complains that Liverpool Victoria Insurance Company Limited (LV) unfairly declined a claim for storm damage on her home insurance policy.

background

Ms B is represented in this complaint by Mr A. Ms B's property suffered damage during a period of bad weather. The tiled roof let in water and part of a ceiling came down. When she tried to claim on her home insurance she was told there hadn't been a storm and the damage had happened over a period of time. But when someone came to do a temporary repair they said the weather was too bad for them to go on the roof. And Mr A says further damage was caused by wind and rain while she waited for a repair. So he'd like LV to pay for the damage that's been caused.

LV said there were strong winds in the area that day. So it'd appointed its trusted provider to carry out an inspection. But LV said it appeared the damage had happened gradually over a period of time. It wasn't the result of a one-off event. LV said it'd looked at the independent report submitted on behalf of Ms B. But LV said the report confirmed the damage wasn't consistent with the sort of damage caused by a storm. So it wasn't able to pay the claim.

Ms B wasn't satisfied with LV's response. So her representative contacted our service and our investigator looked into the matter. She looked at the information provided on behalf of Ms B and LV. And she explained she had to consider whether there'd been a storm around the time of the claim which would've caused the damage to Ms B's roof. If there was no storm there was no insured event.

Our investigator looked at the weather data used by LV which showed winds increased to 41mph on the day the claim was made. She checked with additional weather data which confirmed the same level of wind. But she wouldn't consider winds of 41mph to be a storm. And she wouldn't expect such wind to cause the damage reported to the roof or inside. So she didn't think LV had acted unfairly in declining the claim. And she wouldn't be upholding the complaint.

Mr A didn't agree. He said a fair outcome would be equitable to both parties. Mr A said the damage to Ms B's property had been caused by strong winds accompanied by heavy rain. And the workmen couldn't initially secure the roof because the weather was too severe. The experienced roofer who repaired the damage said it'd been caused by the weather conditions. So he's asked for an ombudsman's final decision.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Ms B's claim for damage to a roof and ceiling has been declined by LV because the recorded wind and rain were below the level considered to be a storm. But her representative feels LV has acted unfairly. So I've looked carefully at everything that's happened to see if LV has made a mistake. And if so what it needs to do to put things right.

When deciding whether I think LV's decision to decline Ms B's claim is fair I have to start by deciding whether an insured event has taken place. An insured event would be the cause of the damage. And it would have to be listed as an insurable peril on the policy document.

Ms B has claimed for storm damage to the roof and an internal ceiling in her property. And her policy does cover for storm damage. So the first thing I look at in this type of complaint is whether or not there was a storm at the relevant time. This is important because if there was no storm there can't have been any damage caused by a storm.

If I'm satisfied there's been a storm I look at whether the damage to Ms B's property is consistent with what I'd expect a storm to cause and whether the storm was the main cause of the damage.

The weather records for the period show the winds reached up to 41 mph. But we would normally consider storm winds to be stronger. It is possible for storm conditions to take place without very strong winds. But I'd expect the rain, hail or snowfall to be exceptional before it could be considered a storm. And the level of hourly rainfall wasn't very high. So there doesn't appear to be any evidence of a storm around the date of the claim.

I realise it was still too windy for the roofer to repair the roof during the first visit. But they would need to consider their own safety. And strong winds don't necessarily mean there's been a storm. Mr A says the delays allowed further damage to take place. But LV's report says the damage appeared to be pre-existing. It wasn't the same as the type of damage normally caused by a one-off event such as a storm.

LV considered Ms B's independent report which suggested the high winds had moved some tiles. And rain had entered the property. But after reviewing the report and photographs LV decided the damage wasn't consistent with storm damage. It said the roof seemed to be in poor condition and LV didn't feel the damage had been caused by a storm. I know the roofer thought the tiles had been moved by the recent high winds. But high winds wouldn't be classed as storm damage. I accept the period of bad weather will have made the situation worse. But I'd expect a well-maintained house to be able to withstand all but the most severe weather events.

As I've previously explained it wouldn't be fair for LV to consider a claim for storm damage when it doesn't appear that a storm had taken place around the time of the claim. And the evidence suggests the damage to the roof is more likely to have been from a number of causes including gradual wear and tear. It's not consistent with the sort of damage normally caused by a storm.

I appreciate how upsetting this must've been for Ms B. LV has accepted there were strong winds and rain during the period.

But based on what I've seen I can't say LV has acted unfairly in declining a claim for storm damage. There isn't enough evidence to suggest a storm took place around the time of the claim and caused the damage Ms B has claimed for. So I won't be asking LV to do anything more.

my final decision

My final decision is that I do not uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Ms B to accept or reject my decision before **2 August 2020**.

Andrew Mason
ombudsman